

PERFORMANCE WORK STATEMENT (PWS)
CONFINEMENT CONTRACT July 2026 – June 2028

Part 1

General Information

1. **GENERAL:** This is a non-personal services contract to provide Confinement for military offenders awaiting trial and adjudication for criminal offenses in accordance with Army Regulation 633-30, Military Sentences to Confinement, 02 December 2015. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1 **Description of Services/Introduction:** The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform Confinement for military offenders awaiting trial and adjudication for criminal offenses in accordance with Army Regulation 633-30, Military Sentences to Confinement, 02 December 2015 as defined in this Performance Work Statement (PWS), section 5 except for those items specified as government furnished property and services. The Contractor shall perform to the standards in this contract.

1.2 **Background:** [Fort Gordon Law Enforcement Center has relied upon local law enforcement agencies to provide confinement services. The Fort Gordon Law Enforcement Center does not possess the resources, manning or facilities to confine offenders awaiting adjudication. The contractor shall provide the facility, management and resources necessary to accept and provide the secure custody, care and safekeeping of military prisoners from Fort Gordon Georgia, in accordance Federal, State and Local Laws, Standards, Policies, Procedures, or Court Orders applicable to the operations of the facility. Prisoners shall only be accepted from and released to Fort Gordon Military Police personnel or the units responsible for the offender after coordination has been established with the military police point of contact.

1.3 **Objectives:**

- a. Ensure safety of the incarcerated Servicemembers
- b. Provide 24/7 observation of servicemember as required by the contracted facility.
- c. Ensure the service provided is cost effective for the Government.
- d. Ensure communication with the Contracting Officers Representative (COR) or delegate is maintained throughout the duration of the contract.

Scope: The Contractor shall provide all personnel, equipment, supplies, facilities, supervision, and other items necessary to perform services as described in the PWS and associated contract documents, except for those items specified in Part 3 Government Property and Services. The Contractor shall perform to the standards and acceptable quality levels identified in

this PWS and associated contract documents for housing Active Duty Servicemembers awaiting trial or who have been sentenced through the military adjudication process. Services include, Contractor shall furnish all personnel, equipment, supplies, facilities, transportation, materials, supervision, and other items necessary to perform services as described in the PWS and associated contract documents. provide services for prisoners for up to five inmates per month. see Objectives in paragraph 1.3 which includes services identified in Part 4. The Contractor shall accomplish, any training required through the State of Georgia required for detention facilities employees and law enforcement training as required by Police Officer Standards Training (POST). For all services furnished under this agreement, Fort Gordon shall reimburse contractor at the contracted rate per prisoner per day, based on quoted daily rates. Fort Gordon may not be billed for two days when a prisoner is admitted one evening and removed the following morning. Contractor may bill for the day of arrival but not the day of departure.

- 1.4 Period of Performance: period of performance July 2026 – June 2026 option year 1 July 2026 – 30 June 2027 and, 1 July 2027 – 30 June 2028. The period of performance shall be for one base period and two (2) 12 month option years. The Period of Performance reads as follows:

Base Year	01 July 2026 – 30 June 2026	Cost : \$118/detainee/day
Option Year I	01 July 2026 – 30 June 2027	Cost: \$130/detainee/day
Option Year II	01 July 2027 – 30 June 2028	Cost: \$143/detainee/day

1.5 General Information

1.5.1 Federal Observed Holidays: Work shall be performed without observance of all U.S. federally recognized holidays regardless of U.S. Holidays unless otherwise directed by the Contracting Officer.

New Year's Day
Martin Luther King Jr.'s Birthday
President's Day
Memorial Day
Independence Day

Labor Day
Columbus Day
Veteran's Day
Thanksgiving Day
Christmas Day

1.5.2 Hours of Operation: The Contractor is responsible for conducting business, 24 hours a day/7 days a week. The Contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the contractor facility is housing confined Servicemembers.

1.5.3 Place of Performance: The work to be performed under this contract will be performed at Lincoln County Detention Center, 145 School Street, Lincolnton, Georgia 30817.

1.5.4 Quality Control Program (QCP)/ Standard Operating Procedures (SOP): The Contractor shall develop and maintain an effective SOP to ensure services are performed in accordance with (IAW) this PWS. The SOP must be forwarded to and accepted by the KO. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of deficiencies. The Contractor's SOP is the means by which the Contractor assures that the work complies with the requirement of the contract. The Contractor will deliver a copy of the Confinement facilities SOP within *(10 working days)*. If the Government has provided comments, the Contractor shall then have *(10 working days)* to submit a Final SOP. After receipt of the Final SOP, the Contractor may receive the Contracting Officer's acceptance in writing. Any proposed changes to the accepted SOP are required to be resubmitted for acceptance by the Contracting Officer no later than 10 days prior to the anticipated change and before implementation by the Contractor. The timeline noted above will apply for review and acceptance for proposed changes. After acceptance of the SOP the Contractor shall receive the contracting officer's acceptance in writing of any proposed change to the SOP.

1.5.5 Quality Assurance: The contractor shall comply with the government's quality assurance program as defined in the Quality Assurance Surveillance Plan. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable quality level(s) (AQL). Government surveillance of contractor performance is not limited to the Performance Objectives as outlined in this PWS. The Government reserves the right to conduct compliance surveillance of any contractual requirement of this acquisition. (Note: This paragraph does not apply in PWSs for Commercial Contracts.)

1.5.6 Type of Contract: The Government will award a (Type of contract to be determined by Contracting Officer and the customer).

1.5.7 Security Requirements: Contractor personnel performing work under this contract are not located on the installation and have no obligation to meet security requirements on the installation.

1.5.7.1 Key Control: N/a

1.5.7.1.1. N/a.

1.5.7.1.2. N/a.

1.5.7.2 Lock Combinations: N/a.

1.5.8 Special Qualifications: N/a.

1.5.9 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation (FAR) Subpart 42.5. The KO and Contracting Officer's Representative (COR) shall meet periodically with the contractor to review the contractor's performance. At these meetings the KO will apprise the Contractor of how the Government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues.

1.5.10 Contracting Officer's Representative (COR): The COR Management System Tool (Virtual Contracting Enterprise (VCE)-Acquisition Resource Center (ARC) <https://arc.army.mil/COR>) for nomination, tracking, documentation, and management of CORs will be used. The COR will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: Assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, and specifications; monitor Contractor's performance and notifies both the KO and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

1.5.11 Key Personnel: The following personnel are considered key personnel by the Government: County Sheriff or designee, Jail Administrator's and the Contracting Officer's Representative for the Directorate of Emergency Services. The Contractor shall provide updates on changes to local appointed Sheriff's Elections or change of command for the awarded office when applicable. The appointed Contract Manager and Alternate Contract Manager shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The Contract Manager or Alternate Contract Manager shall be available at all time. Qualifications for all key personnel are listed below. The Contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the contractor when the manager is absent shall be designated in writing to the contracting officer. The contract manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The contract manager or alternate shall be available between 8:00 a.m. to 4:00p.m., Monday through Friday except for the Federal holidays or when the Government facility is closed for administrative reasons. Qualifications for all key personnel is not required for an off-installation facility, because they meet the State of Georgia requirements enforced by the agency and Georgia Law.

1.5.12 Identification of Contractor Employees: All contract personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed. This paragraph is not required for an off installation facility.

1.5.13 Contractor Travel N/a.

1.5.14 Contractor Personnel Conduct: Contractor personnel's conduct shall not reflect discredit upon the Government. The Contractor shall ensure that personnel present a professional appearance. The Contractor's employees shall observe and comply with all local policies and procedures concerning fire, safety, environmental protection, sanitation, security, and possession of firearms or other lethal or illegal weapons or substance. The Contractor is responsible for ensuring that any contractor employees providing services under this contract conduct themselves and perform services in a professional, safe, and responsible manner. The Contractor shall remove from the job site any employee for reasons of misconduct or security. In accordance with DOD Directive 5500.7-R, "Joint Ethics Regulation", Contractor employees must avoid improperly influenced in the execution of their duties under the contract. Particular attention should be paid to acceptance of gifts/gratuities, and on non-disclosure of sensitive or classified information. The Contractor shall ensure employee conduct complies with 41 U.S. C 423 relative to release of acquisition related information or actions or discussions which may prejudice future competitions. The Contractor shall ensure no contractor employees conduct political related activities or events on the USAR Facilities.

1.5.15 Other Direct Costs N/a: This category includes travel (outlined in 1.6.13), reproduction, and shipping expenses associated with training activities and visits to contractor facilities. It could also entail the renting of suitable training venues.

1.5.16 Data Rights N/a: The Government has unlimited rights to all documents/material produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership/copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the contractor without written permission from the KO. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.5.17 Organizational Conflict of Interest: Contractor and subcontractor personnel performing work under this contract may receive, have access to, or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.), or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the KO immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the KO to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the KO, and in the event the KO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the KO may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.5.18 Phase In/Phase Out N/a: To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the Contractor shall have key personnel on board, during the N/a phase in/phase out periods. The Contractor shall, upon the Contracting Officer's written notice, (1) furnish phase-in and phase-out services for up to 10 months after this contract expires and (2) negotiate in good faith a plan with a successor to determine the nature and extent of phase-in and phase-out services required. The plan shall specify a training program and a date for transferring responsibilities for each division of work described in the plan, and shall be subject to the Contracting Officer's approval. The Contractor shall provide sufficient experienced personnel during the phase-in and phase-out period to ensure that the services called for by this contract are maintained at the required level of proficiency.

1.5.19 Antiterrorism (AT) and Operations Security (OPSEC)

1.5.19.1 AT Level I Training: **This paragraph is not required for an off-installation facility.** This provision/contract text is for contractor employees with an area of performance within an Army controlled installation, facility, or area. All contractor employees, to include subcontractor employees, requiring access to Army installations, facilities, and controlled access areas shall complete AT Level I awareness

training within XX calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the KO, if a COR is not assigned within calendar days after completion of training by all employees and subcontractor personnel.

1.5.19.2 Access and General Protection/Security Policy and Procedures: **This paragraph is not required for an off-installation facility.** This standard language text is for contractor employees with an area of performance within an Army controlled installation, facility, or area. Contractor and all associated sub-contractors' employees shall comply with applicable installation, facility, and area commander installation/facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshall Office, Director of Emergency Services, or Security Office. Contractor workforce must comply with all personal identity verification requirements as directed by DOD, HQDA, and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

1.5.19.3 AT Awareness Training for Contractor Personnel Traveling Overseas: **This paragraph is not required for an off-installation facility.** This standard language text required US based contractor employees and associated sub-contractor employees to make available and to receive government provided area of responsibility (AOR) specific AT awareness training as directed by AR 525-13. Specific AOR training content is directed by the combatant commander with the unit ATO being the local point of contact.

1.5.19.4 iWATCH Training: **This paragraph is not required for an off-installation facility.** This standard language is for contractor employees with an area of performance within an Army controlled installation, facility or area. The contractor and all associated sub-contractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity ATO). This local developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within XX calendar days of contract award and within YY calendar days of new employees commencing performance with the results reported to the COR NLT [insert number of calendar days] calendar days after contract award.

1.5.19.5 Contractor Employees Who Require Access to Government Information Systems (IS): **This paragraph is not required for an off-installation facility.** All contractor employees with access to a government IS must be registered in the ATCTS (Army Training Certification Tracking System) at commencement of services, and must successfully complete the DOD Information Assurance Awareness prior to access to the IS and then annually thereafter.

1.5.19.6 For Contracts that Require an OPSEC Standing Operating Procedure (SOP)/Plan: **This paragraph is not required for an off-installation facility.** The contractor shall develop an OPSEC SOP/Plan within 90 calendar days of contract award, to be reviewed and approved by the responsible Government OPSEC officer, per AR 530-1, Operations Security. This SOP/Plan will include the government's critical information, why it needs to be protected, where it is located, who is responsible for it, and how to protect it. In addition, the contractor shall identify an individual who will be an OPSEC Coordinator. The contractor will ensure this individual becomes OPSEC Level II certified per AR 530-1.

1.5.19.7 For Contracts that Require OPSEC Training: **This paragraph is not required for an off-installation facility.** Per AR 530-1, Operations Security, new contractor employees must complete Level I OPSEC training within 30 calendar days of their reporting for duty. All contractor employees must complete annual OPSEC awareness training.

1.5.19.8 For Information Assurance (IA)/Information Technology (IT) Training: **This paragraph is not required for an off-installation facility.** All contractor employees and associated sub-contractor employees must complete the DoD IA awareness training before issuance of network access and annually thereafter.

All contractor employees working IA/IT functions must comply with DoD and Army training requirements in DoDD 8570.01, DoD 8570.01-M and AR 25-2 within six months of employment.

1.5.19.9 For Information Assurance (IA)/Information Technology (IT) Certification: **This paragraph is not required for an off-installation facility.** Per DoD 8570.01-M, DFARS 252.239.7001, and AR 25-2, the contractor employees supporting IA/IT functions shall be appropriately certified upon contract award. The baseline certification as stipulated in DoD 8570.01-M must be completed upon contract award.

1.5.19.10 For Contractors Authorized to Accompany the Force: **This paragraph is not applicable to the scope of the contract.** DFARS Clause 252.225-7040, Contractor Personnel Authorized to Accompany U.S. Armed Forces Deployed Outside the United States. The clause shall be used in solicitations and contracts that authorize contractor personnel to accompany US Armed Forces deployed outside the US in contingency operations; humanitarian or peacekeeping operations; or other military operations or exercises, when designated by the combatant commander. The clause discusses the following AT/OPSEC related topics: required compliance with laws and regulations, pre-deployment requirements, required training (per combatant command guidance), and personnel data required.

1.5.19.11 For Contractors Requiring Performance or Delivery in a Foreign Country, DFARS Clause 252.225-7043, Antiterrorism/Force Protection for Defense Contractors Outside the US: **This paragraph is not applicable to the scope of the contract.** The clause shall be used in solicitations and contracts that require performance or delivery in a foreign country. This clause applies to both contingencies and non-contingency support. The key AT requirement is for non-local national contractor personnel to comply with theater clearance requirements and allows the combatant commander to exercise oversight to ensure the contractor's compliance with combatant commander and subordinate task force commander policies and directives.

1.5.19.12 For Contracts That Require Handling or Access to Classified Information: **This paragraph is not applicable to the scope of the contract.** Contractor shall comply with FAR 52.204-2, Security Requirements. This clause involves access to information classified "Confidential," "Secret," or "Top Secret" and requires contractors to comply with— (1) The Security Agreement (DD Form 441), including the National Industrial Security Program Operating Manual (DoD 5220.22-M); any revisions to DOD 5220.22-M, notice of which has been furnished to the contractor.

1.5.20 Emergency Services

1.5.20.1 The Contractor shall provide prisoners requiring medical treatment at a medical facility shall be transported to and from the Dwight D. Eisenhower Army Medical Center at Fort Gordon (DDEAMC), Georgia by Military Police if the offender has been sentenced. Pretrial offenders are the responsibility of the unit of assignment for the offender. In the event of a life or death situation, contractors shall have the authority to obtain emergency medical care for prisoners. Contractor shall notify the Military Police Desk within one (1) hour of the emergency (706-791-4380). The government will pay for the medical cost incurred by prisoners under emergency conditions in accordance with the Department of Defense Financial Management Regulation 7000.14-r

1.5.20.2 Emergency medical treatment and services for Contractor personnel is the responsibility of the Contractor.

PART 2
DEFINITIONS, ACRONYMS, AND ABBREVIATIONS

2. DEFINITIONS AND ACRONYMS:

2.1 Definitions:

2.1.1 Cannibalize. Remove parts from Government property for use or for installation on other Government property.

2.1.2 Confinement. State of being restricted, restrained or imprisoned within a specific area, limiting freedom of movement. Typically refers to incarceration and jail.

2.1.3 Contractor. A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.4 Contractor Acquired Property. Property acquired, fabricated, or otherwise provided by the contractor for performing a contract and to which the Government has title.

2.1.5 Contracting Officer (KO). A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

2.1.6 Contracting Officer's Representative (COR). An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.7 Defective Service. A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.8 Deliverable. Anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

2.1.9 Equipment. A tangible item that is functionally complete for its intended purpose, durable, nonexpendable, and needed for the performance of a contract. Equipment is not intended for sale, and does not ordinarily lose its identity or become a component part of another article when put into use. Equipment does not include material, real property, special test equipment or special tooling.

2.1.10 Government Furnished Property. Property in the possession of, or directly acquired by, the Government and subsequently furnished to the contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract.

2.1.11 Government Property. All property owned or leased by the Government. Government property includes both Government-furnished property and contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software

2.1.12 Key Personnel. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in

the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal. The prime contractor is responsible for performance of all subcontractors.

2.1.13 Loss of Government Property. Unintended, unforeseen or accidental loss, damage, or destruction of Government property that reduces the Government's expected economic benefits of the property. Loss of Government property does not include occurrences such as purposeful destructive testing, obsolescence, normal wear and tear, or manufacturing defects. Loss of Government property includes, but is not limited to:—

- (1) Items that cannot be found after a reasonable search;
- (2) Theft;
- (3) Damage resulting in unexpected harm to property requiring repair to restore the item to usable condition; or
- (4) Destruction resulting from incidents that render the item useless for its intended purpose or beyond economical repair.

2.1.14 Material. Property that may be consumed or expended during the performance of a contract, component parts of a higher assembly, or items that lose their individual identity through incorporation into an end-item. Material does not include equipment, special tooling, and special test equipment or real property.

2.1.15 Non-Personal Services. The personnel rendering the services are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the government and its employees. Non personal service contracts are authorized by the government in accordance with FAR 37.012, under general contracting authority, and do not require specific statutory authorization.

2.1.16. Physical Security. Actions that prevent the loss or damage of Government property.

2.1.17 Property. All tangible property, both real and personal.

2.1.18 Property Administrator. An authorized representative of the KO appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a contractor.

2.1.19 Property Records. Records created and maintained by the contractor in support of its stewardship responsibilities for the management of Government property.

2.1.20 Provide. To furnish, as in Government-furnished property, or to acquire, as in contractor-acquired property.

2.1.21 Quality Assurance. The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.22 Quality Assurance Surveillance Plan. An organized document written by the government specifying the surveillance methodology used for surveillance of contractor performance.

2.1.23 Quality Control. All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.24 Real Property. See Federal Management Regulation 102-71.20 (41 CFR 102-71.20).

2.1.25 Sensitive Property means property potentially dangerous to the public safety or security if stolen, lost, or misplaced, or that shall be subject to exceptional physical security, protection, control, and accountability. Examples include weapons, ammunition, explosives, controlled substances, radioactive materials, hazardous materials or wastes, or precious metals.

2.1.26 Subcontractor. One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.1.27 Unit Acquisition Cost means—

- (1) For Government-furnished property, the dollar value assigned by the Government and identified in the contract; and
- (2) For contractor-acquired property, the cost derived from the contractor's records that reflect consistently applied generally accepted accounting principles.

2.1.28 Wide Area Work Flow (WAWF): A secure web based system for electronic invoicing, receipt, and acceptance. WAWF allows government vendors to submit and track invoices and receipt/acceptance documents over the web and allows government personnel to process those invoices in a real-time, paperless environment.

2.1.29 Work Day. The number of hours per day the Contractor provides services in accordance with the contract.

2.1.30 Work Week. Monday through Friday, unless specified otherwise.

2.2 Acronyms:

ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement
AR	Army Regulation
CAP	Contractor Acquired Property
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DOD	Department of Defense
FAR	Federal Acquisition Regulation
GFP	Government-Furnished Property
HIPAA	Health Insurance Portability and Accountability Act of 1996
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCNUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
PA	Property Administrator
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program

SOP
TE
WAWF

Standard Operation Procedures
Technical Exhibit
Wide Area Work Flow

DRAFT

PART 3
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1 Services: The Government will provide all transportation (24 hours a day) to and from the contractor facility. Contractor shall not be responsible for the prisoners while in the government's custody. Pretrial offenders may be transported by their respective units to and from the facility for legal, and or medical appointments as needed. This will include meetings with attorneys, pre-trial hearings, physicals, and dental appointments. The exception to this section would be documented violent offenders, or extreme flight risks, which will be documented in the confinement order provided to the facility at the time of intake. For post-trial (sentenced) offenders- all prisoners will be transported by military law enforcement only.

3.2 Facilities: The Government will be responsible for damage to or loss of the contractor's supplies, materials or equipment directly caused by a Fort Gordon prisoner in accordance with Army Regulation 27-20, Claims or other applicable regulations.

3.3 Utilities: N/a.

3.4 Equipment: N/a.

3.5 Materials N/a.

3.6 Record Keeping. **This paragraph is not applicable to the scope of the contract.** The Contractor shall establish and maintain the records of Government property in accordance with FAR 52.245-1 and the Property Administration Guidebook. They are:

- (1) Name, part #, NSN
- (2) Quantity received, issued, on hand
- (3) Unit acquisition cost
- (4) Unique Item Identifier
- (5) Unit of Measure
- (6) Accountable contract #
- (7) Location
- (8) Disposition
- (9) Posting reference or date of transaction
- (10) Date placed in service

The Contractor shall tag, label, or mark Government Furnished Property as subject to serially managed items IAW DFARS 252.245-7000.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2 Secret Facility Clearance N/a. The Contractor shall possess and maintain a SECRET facility clearance from the Defense Security Service. The Contractor's employees performing work in support of this contract shall have been granted a SECRET security clearance from the Defense Industrial Security Clearance Office..

4.3. Materials: Contractor shall furnish all supplies necessary for the personal hygiene and health and comfort of prisoners during initial processing and whenever the prisoner informs guard of being without any of the required supplies

4.3.1 Meals: Contractor shall provide three (3) meals per day, consistent with the standards the jail is required to meet in feeding the civilian population. All prisoners regardless of location are due three (3) meals per day. Contractor shall make provisions to ensure this standard is met (meals must be provided upon return of prisoners or before departure)

4.4. Equipment: N/a.

PART 5
SPECIFIC
TASKS

5. SPECIFIC TASKS:

5.1. Basic Services: The Contractor shall provide services for prisoners for up to five inmates per month. There may be days when confinement service are not required and therefore charges for services will not be incurred.

5.1.2. Invoices: Invoices for service shall be submitted monthly within the first five days of the month for the previous month's service. The invoice shall contain the name of each Fort Gordon prisoner, their specific dates of confinement, the total days to be reimbursed, and the total amount billed. Invoices shall cite the contract number and be submitted in wide area workflow with a copy to Contracting Officer Representative (COR), Directorate of Emergency Services, Fort Gordon Georgia, 30905.

5.2. Task Heading. Contractor to Inmate Responsibilities

5.2.1 Contractors shall conduct all tasks related to administratively processing approximately 5 prisoners per month. Processing includes, but is not limited to releases, transfers and follow up action

5.2.2. Contractors shall maintain paperwork of all files, records, orders, correspondence, etc., pertaining to the prisoner. Files must be secured in accordance with the Privacy Act

5.2.3. Contractors shall allow Military commanders of military prisoners the same visitation privileges as those afforded to attorneys. Prisoners are authorized visitation by the immediate family members on regularly scheduled visitation day(s) established by the contractor

5.2.4. Pre-Trial Confinement: The contractor shall segregate pre-trial (detained) prisoners from post-trial (sentenced) prisoners during work/ employment details. Under no circumstances shall pre-trial/post-trial prisoners be used to supplement the prisoner workforce for the contractor's facility, to include trustee type responsibilities

5.2.5. Contractors shall provide direct supervision and control. While military prisoners are confined to the contractor's facility, they shall be under direct supervision and control of contractor's jail personnel. Whenever military prisoners are requested and released to military police, or unit personnel, the contractor will not be held responsible nor liable for custody nor control of those military prisoners until they are physically returned to the contractors supervision.

5.2.6. Contractors shall prepare and maintain all prisoner treatment files, which are part of the processing procedures and as such are subject to the time constraints established for the in/out processing release or transfer prisoners

5.2.7. Contractor shall coordinate with military police point of contact to prepare prisoner's transfer/release from custody (approximately 5 prisoners per month). Ensure that all-proportional measures (e.g. requests for order), suspense, documentation and property are transferred with or released upon prisoners request. In the event that assistance/coordination with outside agencies is required based on the projected transfer or release date, the contractor shall notify the military police point of contact and take action to meet the out- processing time frame.

5.2.8. In the event the event property, pertaining to a released or transferred prisoner is left at the contractor's facility (regardless of reason) the contractor shall be responsible for releasing all prisoner property or correspondence to the Military Police point of contact. This action shall be accomplished within three (3) working days of receipt of property

5.2.9. In order to maintain good order and discipline within the confinement facility, the military

prisoners will be held to the same standard of conduct as all other prisoners held within the facility. Prisoners will be reprimanded as required by the facility standards. The military police point of contact will be notified each time an offender has to be reprimanded, and all issues will be documented and provided to the military police point of contact as needed. The offender's unit will also be notified as well so that additional corrective action if needed can occur.

5.3. Service Contract Reporting (Only applies to Army Customers): The contractor shall report the contract number and order number, total dollar amount invoiced for services performed during the previous Government fiscal year under the order, the number of Contractor direct labor hours expended on the services performed during the previous Government fiscal year, and data reported by subcontractors when applicable. This information shall be submitted annually by October 31 via the internet at www.sam.gov. Contractors may direct questions to help desk by clicking on "Send an email" which is located under the Help Resources ribbon on the right side of the login page of the applicable Service/Component's website at <https://SAM.gov>. As part of its submission, the contractor will also provide the estimated total (if any) incurred to comply with this reporting requirement.

PART 6

APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS):

6.1 The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures. Any Contractor provided publications are to be procured and maintained at Contractor's expense.

- 6.1.1. Department of Defense Security Agreement (DD Form 441)
- 6.1.2. Department of Defense Contract Security Classification Specification (DD Form 254)
- 6.1.3. National Industrial Security Program Operating Manual (DoD 5220.22-M)
- 6.1.4. The Army Physical Security Program (AR 190-13)
- 6.1.5. Contractor Identification (AE Reg 27-715)
- 6.1.6. U.S. Army Corps of Engineers Safety and Health Requirements Manual (EM 385-1-1)
- 6.1.7. Information Assurance Workforce Improvement Program (DoD 8570-M)
- 6.1.8. Information Assurance Training Certification and Workforce Management Directive (DoDD 8570.01)
- 6.1.9. Information Assurance (AR 25-2)
- 6.1.10. Electromagnetic Compatibility Directive (2004/108/EC)
- 6.1.11. Policies and Procedures for Property Accountability (AR 735-5)
- 6.1.12. The Army Corrections System (AR 190-47)

PART 7
ATTACHMENT/TECHNICAL EXHIBIT LISTING

7. ATTACHEMENT/TECHNICAL EXHIBIT LIST:

7.1 Attachment 1/Technical Exhibit 1 – Performance Requirements Summary

7.2 Attachment 2/Technical Exhibit 2 – Deliverables Schedule

7.3 Attachment 3/Technical Exhibit 3 – Estimated Workload Data

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TECHNICAL EXHIBIT 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Required Services/Performance Objective (Tasks)	Performance Standard	Acceptable Quality Level (This is the maximum error rate. It could possibly be "Zero deviation from standard")	Incentive (Positive and/or Negative) (Impact on Contractor Payments)
# 1. The contractor shall provide the facility, management and resources necessary to accept and provide the secure custody, care and safekeeping of military prisoners from Fort Gordon Georgia, in accordance Federal, State and Local Laws, Standards, Policies, Procedures, or Court Orders applicable to the operations of the facility PWS 1.2,-1.3	The contractor provided Facility shall be available 24 hours a day 7 days a week, including nights weekends and holidays as outlined.. PWS 1.2-1.3].	100% Compliance Zero Deviation from standard.	There are no incentives positive or negative for this contract as it is a service for confining prisoners.
#2 PWS para (5.1.2) Invoices for service shall be submitted monthly within the first five days of the month for the previous month's service. PWS 5.1.2	The invoice shall contain the name of each Fort Gordon prisoner, their specific dates of confinement, the total days to be reimbursed, and the total amount billed. Invoices shall cite the contract number and be submitted in wide area workflow with a copy to Contracting Officer Representative (COR), Directorate of Emergency Services PWS 5.1.2	95% Compliance; no more than 02 discrepancies found per month,	N/a
#3 PRS #5.3 - Service Contract Reporting (SCR)	The Contractor shall completely fill in all the information in the format using the following web address www.sam.gov The	Yearly confirmation random sampling/periodic inspection	

	contractor shall provide the estimated total cost (if any) incurred to comply with this reporting requirement. Reporting period shall be the period of performance not to exceed 12 months ending September 30 of each government fiscal year and must be reported by 31 October of each calendar year. If contract period of performance ends prior to September 30, the contractor has 30 days from end date of the contract to complete the SCR requirement.		
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TECHNICAL EXHIBIT 2
DELIVERABLES SCHEDULE

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
Monthly invoice submission PWS paragraph 5.3.]	Monthly when housing pre/post-trial servicemember(s)	1 Original	Via Email, in MS Word or Adobe PDF.	Submitted to COR

TECHNICAL EXHIBIT 3
ESTIMATED WORKLOAD DATA

ITEM	NAME	ESTIMATED QUANTITY	
1	Confinement of Pre/post-trial confinement	104 days <u>confinement</u>	Average cost \$11,128 Annually]
2			
3			
4			
5			